

26VECV02299 26VECV02299

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F30%2F2026

Source SHA-256: 690c148d2fdb9ae4c306c85b663eacef44de37149080aa242642e45272cc8e1

Case Number: 26VECV02299 Hearing Date: July 30, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARDY S. FISH, an
individual,

Plaintiff,

vs.

JAGUAR LAND ROVER NORTH AMERICA, LLC, a
Delaware Limited Liability Company, and DOES 1 through 10, inclusive.

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 26VECV02299

ORDER

OVERRULING DEFENDANT'S DEMURRER

ORDER

DENYING DEFENDANT'S MOTION TO STRIKE

I.

BACKGROUND

This is a lemon law action. Plaintiff Mardy Fish ("Plaintiff") alleges he leased a 2023 Land Rover Range Rover ("Subject Vehicle") from Galpin Jaguar Lincoln Mercury Inc. Plaintiff alleges the Subject Vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty and developed other serious defects and non-conformities to warranty such as electrical and safety related system defects.

Defendant now demurrers

to and moves to strike portions of the First Amended Complaint ("FAC").

///

II.

PROCEDURAL

HISTORY

On April 20,
2026, Plaintiff filed a Complaint alleging (1) Violation of Song-Beverly Act - Breach of Express Warranty; (2) Violation of Song-Beverly Act - Breach of Implied Warranty; and (3) Violation of The Song Beverly Act Section 1793.2.

On June 1,
2026, Plaintiff filed his FAC alleging (1) Violation of Song-Beverly Act - Breach of Express Warranty; (2) Violation of Song-Beverly Act - Breach of Implied Warranty; (3) Violation of The Song Beverly Act Section 1793.2; and (4) Fraud-Fraudulent Inducement-Concealment.

On July 6,
2026, Defendant filed the instant Demurrer with Motion to Strike.

On July 17,
2026, Plaintiff filed his Oppositions.

On July 23,
2026, Defendant filed its Replies.

III.

MEET AND CONFER

Before filing
a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendant did

not satisfy its meet and confer obligation because it only conferred by letter.

(See Declaration of Bryan Roth filed July 6, 2026, ¶ 2, Ex. A.) The Court will address the merits of the Demurrer and Motion but reminds the parties to comply with their statutory obligation to meet and confer as it is unlikely to overlook this failure should it happen again.

///

///

///

///

IV.

DEMURRER

A.

Legal Standard

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.”²(Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court³(1984) 153 Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v. Superior Court⁴(1986) 180 Cal.App.3d 605, 609-610.) A demurrer can only be sustained when it disposes of an entire cause of action.⁵(See Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

²Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy

(1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B.

Judicial Notice

The Court

grants Plaintiff’s request for judicial notice of a court order in Case No. 25VECV05217. However, judicial notice of other court records and files is limited to indisputably true matters, as distinguished from the contents of documents filed. (See Fremont Indemnity Co. v. Fremont Gen. Corp. (2007) 148 Cal.App.4th 97, 113.)

C.

Analysis

1.

Fraudulent Concealment

“[T]he elements of a cause of action for fraud based on concealment are: ‘(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.’” (Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850, quoting Roddenberry v. Roddenberry (1996) 44 Cal.App.4th 634, 665-666.)

a.

Duty to Disclose

One party’s failure to disclose material facts

unknown to another party is not fraud unless “unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” (LiMandri

v. Judkins (1997) 52 Cal.App.4th 326, 337.) “In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (Warner Constr. Corp. v. City of Los Angeles (1970) 2 Cal.3d 285, 294.) “Circumstances [(1), (2), (3)] presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’ [Citation.] ‘Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.’” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41.)

Defendant

argues the FAC fails to plead a direct transactional relationship between the parties necessary to establish a duty to disclose. (See Dem. at 4:15-16, citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312.) Defendant argues Plaintiff does not allege the third-party dealership he leased his vehicle from was a subsidiary or agent of Defendant’s such that a relationship with Defendant is alleged under Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844. (See Dem. at 4:21-26.)

Plaintiff

argues his alleged warranty contract with Defendant is sufficient to establish a preexisting relationship with Defendant under Rattagan. (See Opp. at 10:19-24.) Plaintiff also argues under OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 851, a direct transactional relationship is not required because Defendant had a duty to disclose to subsequent purchasers of its vehicles. (See Opp. at 6:11-24.) Finally, Plaintiff argues the FAC pleads Defendant had exclusive knowledge of and actively concealed the true extent of the Engine Defect. (See id., at 12:5-7.)

In reply,

Defendant argues Dhital's finding the plaintiff's allegations sufficient at the pleading stage was limited to the parties' arguments before it. (See Reply at 1:23-28, citing Dhital, 84 Cal.App.5th at 844.) Further, Defendant argues the Supreme Court in Rattagan reaffirmed the direct transaction requirement for a duty to disclose. (See Reply at 2:11-22.) Defendant argues a warranty contract does not establish a direct transactional relationship. (See id., at 2:27-28.) Defendant argues Plaintiff cannot rely on an agency relationship between the dealership and Defendant as Courts have consistently held that automobile dealerships are not agents of the manufacturer for purposes of retail sales. (See id., at 3:21-28 [citing non-binding authority].) Moreover, Defendant contends the FAC does not contain agency allegations comparable to the Dhital plaintiffs who alleged the manufacturer's "authorized dealerships are its agents for purposes of the sale of [the manufacturer's] vehicles to consumers." (See id., at 4:2-5, citing Dhital, 84 Cal.App.5th at 844.) Finally, Defendant argues Plaintiff's reliance on OCM is misplaced as that case found a duty to disclose because the defendant went beyond general advertising directed at the public. (See Reply at 4:7-25.)

The Court

finds Plaintiff sufficiently alleges his fourth cause of action for fraudulent concealment. Defendant's reliance on Bigler-Engler is misplaced. First, Bigler-Engler is factually distinguishable from this case, as that action was, at its heart, a medical malpractice case in which the plaintiff was a patient who sued, among others, the manufacturer of the medical device involved. (Bigler-Engler, 7 Cal.App.5th at 284.) Here, however, Plaintiff is a direct purchaser of the product himself, not merely the person on whom the product was used. (See FAC, ¶¶ 2, 5.) Second, Bigler-Engler held that ordinarily, a duty to disclose absent a fiduciary relationship "presupposes the existence of [a] relationship between the plaintiff and defendant in which a duty to disclose can arise." (Bigler-Engler, 7 Cal.App.5th 276, 311.) Defendant's reliance on this general rule as stated in Bigler-Engler is misplaced because it ignores California courts have developed a distinct doctrine that applies when, as here, an original seller manufactures or sells a product to whom it reasonably expects the product to be resold.

A vendor has

a duty to disclose material facts "not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold." (OCM Principle Opportunities Fund v. CIBC World

Markets Corp. (2007) 157 Cal.App.4th 835, 859-60.) The duty to disclose to subsequent purchasers is limited: the plaintiff must show that the seller had special "reason to expect" that the fraud will be passed onto subsequent purchasers. (Geernaert v. Mitchell (2007) 31 Cal.App.4th 601, 607-08.) In determining whether the seller had "reason to expect" that the fraud will be passed onto subsequent purchasers, courts generally consider two factors: "(1) the extent of the seller's knowledge of resale to a particular person or class of persons and (2) the likelihood that the particular misrepresentation (or concealment) would be passed on to them." (Id. at 608.)

The FAC

alleges Defendant had reason to expect the fraud could be passed onto Plaintiff, as Defendant manufactured the Subject Vehicle knowing it had defective systems and would be sold by a dealership to a subsequent purchaser. The FAC alleges Defendant engaged in pre-sale communications with Defendant's authorized sales agents, Plaintiff entered into a warranty agreement with Plaintiff regarding the Subject Vehicle, Defendant manufactured the powertrain and electrical systems Plaintiff complained about, and Defendant was exclusively aware the systems were defective. (See FAC, ¶¶ 3, 17, 30-32, 37.) The Court is unpersuaded by Defendant's reading that OCM only found a duty to disclose because the defendant actively advised potential purchasers. The OCM Court primarily found a duty to disclose because the defendant had reason to expect the unregistered notes it sold would be resold to subsequent purchasers and "moreover, it actively advised potential purchasers regarding the registered notes." (OCM, 157 Cal.App.4th at 860.) Thus, because the FAC alleges Defendant had reason to expect the fraud would be passed on to a subsequent purchaser, it alleges Defendant had a duty to disclose on this basis.

Moreover, the

FAC alleges a preexisting buyer-seller relationship sufficient to support a duty to disclose. In Dhital, the Court found the plaintiff's allegations that they "bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers" were sufficient at the pleading stage to allege a relationship requiring defendant to disclose known defects. (See Dhital, 84 Cal.App.5th at 844.) Here, the FAC similarly alleges Plaintiff, a buyer, engaged in pre-sale communications with Keyes European sales personnel, who are authorized agents and representatives of Defendant. (See id., ¶ 3, 6, 17 [the latter two paragraphs support the inference that "Keyes European" refers to Galpin Jaguar

Lincoln Mercury Inc].) The FAC also alleges the type of system defects and their specific effects. (See FAC, ¶¶ 34-36, 102-103.) The FAC alleges Defendant exclusively knew of these material defects “from pre-production testing, internal investigations, consumer complaints, warranty data, dealership repair orders, and communications with the National Highway Traffic Safety Administration.” (See id., ¶¶ 30-31, 106.) The FAC alleges Defendant marketed the Subject Vehicles before, during, and after the sale as technologically advanced instead of disclosing the Subject Vehicle’s defects. (See id., ¶ 110, 112.) Plaintiff also alleges he would not have purchased the Subject Vehicle had he been aware of the defects. (See id., ¶ 112.) Thus, the Court finds Plaintiff also sufficiently alleges a duty to disclose by virtue of the parties’ relationship and defendant’s exclusive knowledge of the material defect.

b.

Specificity

Defendant argues

the FAC fails to satisfy the general rule requiring particularized allegations of who, what, when, where, and how when pleading fraud against a corporation. (See Dem. at 5:16-19.) Defendant argues Plaintiff alleges in a conclusory manner it concealed facts of which it possessed exclusive knowledge. (See id., at 5:17-20.) Defendant also argues Plaintiff does not allege any specifics with respect to the contents of the marketing materials he allegedly reviewed and relied on in his purchasing experience. (See id., at 6:2-7.)

In

opposition, Plaintiff argues he sufficiently pleads fraud with specificity, as his allegations are similar to those found to be sufficient in Dhital. (See Opp. at 10:3-5.)

In reply,

Defendant argues Plaintiff’s allegations are not comparable to those in Dhital, Plaintiff’s allegations concerning the selling dealership are inconsistent, and Plaintiff alleges only generic marketing directed at the public at large. (See Reply at 5:18-27.)

The Court

finds Plaintiff pleads his claim with specificity. The general rule for pleading fraud against a corporation applies differently when the fraud claim

is based upon an assertion of concealment. (See *Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384 [“How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?”].) Instead, such details, in the context of a fraudulent concealment claim, “are properly the subject of discovery, not demurrer.” (Id., 171 Cal.App.4th at 1384-85.) Additionally, the specificity requirement is “relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 27.) That is the case here.

Moreover, the FAC’s allegations are similar to those in *Dhital*. In *Dhital*, the Court found allegations “the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to the National Highway Traffic Safety Administration and to Nissan and its dealers” were sufficiently specific. (See *Dhital*, 84 Cal.App.5th at 845.) Here, the FAC alleges the type of system defects and their specific effects. (See FAC, ¶¶ 34-36, 102-103.) The FAC alleges Defendant exclusively knew of these material defects “from pre-production testing, internal investigations, consumer complaints, warranty data, dealership repair orders, and communications with the National Highway Traffic Safety Administration.” (See id., ¶¶ 30-31, 106.) The FAC alleges Defendant marketed the Subject Vehicles before, during, and after the sale as technologically advanced instead of disclosing the Subject Vehicle’s defects. (See id., ¶¶ 110, 112.) Plaintiff also alleges he would not have purchased the Subject Vehicle had he been aware of the defects. (See id., ¶ 112.) The Court finds these allegations are sufficiently pled with the requisite specificity.

Thus, the Court **OVERRULES** Defendant’s Demurrer to the sixth cause of action for fraudulent concealment.

///

V.

MOTION TO STRIKE

A.

Legal Standard

The court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form, or in the procedures, pursuant to which it was filed.” (Ferraro

v. Camarlinghi (2008) 161

Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

“The

appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (Caliber Bodyworks, Inc. *v. Superior Court* (2019) 134 Cal.App.4th 365, 385 [court directed striking alleged civil penalties from causes of action, not drawn in conformity with the laws, due to failure to plead compliance with statutory notice and exhaustion requirements], disapproved of on other grounds by ZB, N.A. *v. Superior Court* (2019) 8 Cal.5th 175. Cf. *Royals v. Lu* (2022), 81 Cal.App.5th 328, 353 [court properly denied motion to strike allegations sufficient to support statutory penalties under applicable statutory sections].)

B.

Analysis

Defendant

moves to strike Plaintiff's claim for civil penalties including:

(1) Paragraph

73, in its entirety,

(2) Paragraph

100, in its entirety; and

(3) Prayer

for Relief, Page 19, Item 5, which reads: “For civil penalty in the amount of two times Plaintiff’s actual damages.”

Defendant

argues § 871.24(h) clearly states a plaintiff who initiates an action without first providing the required notice “shall not seek civil penalties, whether by amendment of the complaint or otherwise.” Defendant argues Plaintiff is not entitled to civil penalties because the FAC fails to allege compliance with Code of Civil Procedure § 871.24. (See Code Civ. Proc. § 871.24.) (See Mot. at 3:1-5.) Defendant argues civil penalties under the SBA are akin to punitive damages and thus, the reasoning for requiring factual allegations to support a claim for punitive damages is also applicable to a claim for civil penalties. (See *id.*, at 3:18-19, 4:5-10, citing *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 184 [the penalty under § 1794(c), like other civil penalties, are akin to punitive damages].)

In

opposition, Plaintiff argues Defendant offers no authority to support its position that compliance with Code of Civil Procedure § 871.24(a) must be plead to allow recovery of civil penalties. (See Opp. at 3:19-20.) Plaintiff argues whether he has made a sufficient pre-suit restitution request pursuant to Code of Civil Procedure § 871.24 is a factual matter that cannot be resolved at the pleading stage. (See Opp. at 2:17-19; RJN, ¶ 1, Ex. 1.) Plaintiff also argues he sufficiently pleads Defendant’s failure to comply with its statutory repurchase or replacement obligations was willful and therefore he has pled sufficient support for his civil penalty claim under Civil Code § 1794(c). (See Opp. at 4:16-18, 6:11-12.) Finally, Plaintiff argues § 871.24 should be interpreted as creating an additional statutory prelitigation procedure and not to restrict the civil penalty remedy available under Civil Code § 1794(c). (See *id.*, at 10:7-12, relying on § 871.28 [“duties and obligations imposed by this chapter are cumulative with duties or obligations imposed under any other law and shall not be construed to relieve any party from any duties or obligations imposed under any other law.”].)

Defendant

argues the order Plaintiff relies on in his request for judicial notice is not binding on this Court and should be disregarded. (See Reply at 1:13-16.)

Defendant argues willfulness under § 1794(c) and satisfaction of the prelitigation procedure under § 871.24 are separate, cumulative requirements; a plaintiff must satisfy both before civil penalties may be pursued. (See id., at 3:15-17.) Defendant also argues the prelitigation requirements of § 871.24 are not rendered optional by § 871.28, which preserves a manufacturer's obligations under the SBA and does not discuss civil penalties. (See id., at 3:26-4:3.)

The Court agrees with Plaintiff that compliance with section 871.24's prelitigation procedures is a question of fact not suitable for disposition at the pleading stage where a plaintiff has failed to allege compliance.

The Court DENIES
Defendant's Motion to Strike.

VI.
CONCLUSION

Based on the foregoing, the Court OVERRULES Defendant's Demurrer and DENIES Defendant's Motion to Strike.

Defendant is
ordered to file an Answer only on or before August 10, 2026.

IT
IS SO ORDERED.

DATED: July 30, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.